

The Proposed Global Pact for the Environment: A Framework for Consistent Realisation of the Sustainable Development Goals

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Since the adoption of the Charter of the United Nations in 1945, one of the UN's main purposes has been cooperation:

*To achieve international cooperation in solving international problems of an economic, social, cultural, or humanitarian character, and in promoting and encouraging respect for human rights and for fundamental freedoms for all without distinction as to race, sex, language, or religion.*¹

The term “sustainable development” was first coined in an environmental context by the Club of Rome, then by the International Union for Conservation of Nature (IUCN), and then, famously, in 1987, used in the report entitled *Our Common Future* issued by the “Brundtland Commission” – UN World Commission on Environment and Development. Thanks to this concept, the environment was added to the main concerns of the UN and, hence, to the international political discourse. Sustainability entails the integration of the environment into all development strategies and within all countries, not just the underdeveloped ones.² It was described in the Brundtland Report as a key action: “Humanity has the ability to make development sustainable, to ensure that it meets the needs of the present without compromising the ability of future generations to meet their own needs”.³ This idea lies at the foundation of the 17 Sustainable Development Goals (SDGs) adopted by the UN General Assembly (UNGA) on 25 September 2015, as part of its 2030 Agenda for Sustainable Development,⁴ with the goals of “end[ing] poverty, protect[ing] the planet and ensur[ing] prosperity for all”.⁵

The concept of sustainability is also present in the initiative to develop a Global Pact for the Environment (GPE). The GPE is currently set to begin negotiations.⁶ It is proposed to enunciate an obligation of the States to “ensure the promotion of public support policies, patterns of production and consumption both sustainable and respectful with the environment”.⁷ This formulation would mean that the environment is an inherent element of the SDGs, and not just a corrective force.

The GPE's connection with the UN human rights legal framework justifies the view that it will be an essential element of that framework. As a result, States participating in the pact will have the duty to incorporate the environment into their respective and varying public policies.

Such public policies, geared towards the protection of the environment, are already a precondition for the effective realisation of an individual's right to a healthy environment – this right could not be effective if it had not been previously established in a collective way. Hence the legal right to the environment works in two directions: it is an individual right that creates obligations for the States to define the necessary conditions for its effective realisation (a healthy environment). But it also works the other way around: the objective duty of the States to protect the environment, necessarily drives the State to mandate and enforce protection of that healthy environment.

Any international agreement clearly requires international cooperation, if it is to be successfully put into practice.⁸ This necessity is exemplified by the 2030 Agenda and the SDGs, which have overcome the first hurdle, by receiving unanimous approval from the UN Member States.⁹ However, the SDGs are practical and contain 169 targets that need to be achieved at a national level. This is the next hurdle – achieving these targets is a challenge to be accomplished by 2030.

The GPE process represents a reversal of the normal evolution/diffusion of international legal concepts, in that the right to a healthy environment is well consolidated at the domestic level in many countries.¹⁰ It is also an underlying element of the SDGs. Now it serves as a cornerstone of the proposed GPE. Despite the success of global environmental governance over the years,¹¹ however, there is not yet an overall legal instrument that would codify a “globally accepted substantive human right to a good or clean and healthy environment”.¹²

In this regard, the GPE initiative, in its current incarnation,¹³ aims at unifying and reinforcing existing environmental law and principles by formally recognising an individual right to a healthy environment at the international level, thereby completing the existing international human rights governance. As stated by Professor John Knox, Special Rapporteur on the issue of human rights obligations, relating to the enjoyment of a safe, clean, healthy and sustainable environment:

*a safe, healthy and sustainable environment is necessary for the full enjoyment of a vast range of human rights, including the right to life, health, food, water and development. At the same time, the exercise of human rights, including the rights to information, participation and remedy, is vital to the protection of the environment.*¹⁴

International and domestic levels of cooperation, each serving their own specific strategic objectives, are

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necessarily interconnected:¹⁵ “Achieving goals at one level depends on enabling factors at the other”.¹⁶ Therefore, given the natural connection between the SDGs and the right to a healthy environment, the conclusion of the GPE will contribute to the success in SDG implementation at the domestic level, while at the same time, those goals will help consolidate the right to a healthy environment at the international level. The GPE will provide a tool that will help implement the SDGs with greater consistency.

This paper will briefly describe currently available legal protection of the environment at the national and international levels; the link between the environment and the SDGs, and what the GPE will contribute to the implementation of the SDGs.

Existing Legal Protection of the Right to a Healthy Environment

Although today, the link between human rights and the environment is clear, it has not always been so evident, from a legal and academic perspective.¹⁷ None of the original statements of human rights obligations specifically encompasses the right of the enjoyment of a “safe, clean, healthy and sustainable environment”, even though such a right affects all aspects of people’s lives.¹⁸ This is because the environmental movement started after the adoption of the UN Declaration of Human Rights and the two international Covenants, both from 1966, that recognised the protection of economic, social and cultural rights, and of civil and political rights, respectively.¹⁹

Since the adoption of the Universal Declaration of Human Rights in 1948,²⁰ the UN has insisted that those rights must be protected by means of the rule of law. Thus, it is clear that postulating a global environmental right is not enough – it must be protected by law.

Current economic inequalities contribute to the rise in the world’s health and social problems in both rich and poor countries, with serious consequences for the protection of the environment.²¹ Environmental degradation is associated with social and economic deprivation and with serious health challenges,²² perpetuating these economic and social inequalities. Various reports from Special Rapporteur Knox show that human rights and the environment are interdependent: a healthy environment is necessary for the enjoyment of a full life, and the exercise of human rights is inherent to a healthy environment.²³

While most countries and regional legal instruments have adopted some kind of legal instrument to recognise and protect the right to a healthy environment, the international legal system has fallen behind. Many have rushed to fill in the gaps with human rights law, interpreting recognised human rights as also protecting the environment.²⁴ In order to set obligations among States, the recognition of a right should be first established. And this is the real contribution of the GPE and the benefit it brings to the implementation of the SDGs.

The Evolution of International Legal Protection of the Environment

At the international level, protection of the environment has been fragmented, resulting in a sectoral approach that can be described as insufficient or insufficiently ambitious, given the current state of the planet.

The link between the environment and human rights goes back to 1972, with the Stockholm Declaration of the UN Conference on the Human Environment,²⁵ followed 20 years later by the Rio Declaration on Environment and Development.²⁶ In the Stockholm Declaration, the right to a healthy environment was formally acknowledged for the first time,²⁷ conferring it universal value as a moral standard²⁸ commonly accepted by all nations around the world. Thereafter, the effort to define an environmental legal framework culminated in the Rio Declaration, in 1992. Since then, that effort has evolved sectorally,²⁹ as the international community has failed to formally recognise or codify a “globally accepted substantive human right to a good or clean and healthy environment”.³⁰

In 1989, the UN Commission on Human Rights started to approach environmental issues with a series of resolutions related to toxic and dangerous products and waste.³¹ This led to the adoption of the first Resolution on “Human Rights and the Environment”, in 1994, and marked the beginning of a series of subsequent resolutions with this title.³² However, the Commission wasted an opportunity in 1995 to recognise the right to a healthy environment, and it was also not mentioned during the global conferences on sustainable development in Johannesburg and Rio. The “human rights and environment” topic was again linked to sustainable development at the World Summit on Sustainable Development in Johannesburg in 2002 and in a range of Commission resolutions thereafter.³³ The Human Rights Council was formally created in 2006, taking over the role and responsibilities of the Commission on Human Rights, including those “relating to the work of the Office of the United Nations High Commissioner for Human Rights (HCHR), which had been established in 1993”.³⁴ In line with this, in 2011, the Council adopted a thorough study by the UNHCHR on the relationship between human rights and the environment, which also formally considered the views of UN State Members, relevant international organisations and intergovernmental bodies.³⁵ That analysis expressed three conclusions:

- a) sustainable development and the protection of the environment can contribute to human wellbeing and the enjoyment of human rights;
- b) environmental damage can have negative implications, both direct and indirect, for the effective enjoyment of human rights; and
- c) human rights obligations and commitments have the potential to inform and strengthen international, regional and national policy making in the area of environmental protection.

Building on the above described resolutions and analysis, in March 2012, the Human Rights Council appointed its first Independent Expert on Human Rights and the Environment,³⁶ a position filled by the appointment of John Knox. In 2015, the Council extended this appointment for three additional years, re-designating him as a “Special Rapporteur” on the topic.³⁷ In his first report, of March 2013, Knox stressed the interdependence of human rights and the environment.³⁸ Accompanying his report, he conducted research around the world to identify the different human rights obligations relating to the environment covered by regulatory bodies and jurisprudence around the world and concluded that, despite their diversity, the approach to the issue was very coherent.³⁹ The Special Rapporteur also identified and described good practices in the use of obligations under human rights law to protect the environment, in his following report, presented in March 2015.⁴⁰ After this mandate was renewed, he submitted various other reports on specific aspects of the relationship between human rights obligations and the enjoyment of a safe, clean, healthy and sustainable environment, specifically, on climate change and human rights, on biodiversity and human rights, and on children’s rights and the environment.⁴¹ In conjunction with his March 2016 report, he submitted a second report which included recommendations on the implementation of the human rights obligations with respect to the environment, identifying the main challenges and barriers to their full satisfaction,⁴² and in another one elaborated in October 2017, some draft guidelines to spread guidance on the main norms on the issue, which finally led to the publication, in January 2018, of the Framework principles on human rights and the environment,⁴³ which provides detailed guidance for their implementation, and a foundation for their further development.

Proposal of a Global Pact for the Environment

In 2015, building on previous attempts to codify a right to a healthy environment, the environmental commission of the French think tank *Le Club des Juristes*, chaired by Yann Aguila, proposed the adoption of a Global Pact for the Environment. This initiative gained a very important boost thanks to support from President

Macron and from Laurent Fabius, who had served as President of the 21st Conference of the Parties to the UN Framework Convention on Climate Change (UNFCCC) and the Paris Climate Negotiations. The Club’s draft text, as submitted to the UNGA in September 2017, proposed to give “greater coherence to international environmental laws, and set out clear obligations for States and individuals to protect the environment”.⁴⁴ It sought to bring the existing agreed environmental principles together in a single text that would complete the human rights legal system. It included 26 short articles with the aim to effectively tackle the environmental threats we face, including climate change and the loss of biodiversity, the eradication of poverty, the growth of inequalities and the situation of the most vulnerable, with a clear determination to promote a sustainable development that would allow each generation to fulfil their needs without compromising those of the following ones and respecting the balance and equilibrium of the Earth’s natural system.

In May 2018, the UNGA adopted a resolution⁴⁵ calling for the commencement of negotiation of a Global Pact for the Environment. As a first step, the Resolution requested the Secretary-General “to submit to the General Assembly at its seventy-third session in 2018 a technical and evidence-based report that identifies and assesses possible gaps in international environmental law and environment-related instruments with a view to strengthening their implementation”. Thereafter, a new draft is to be elaborated and discussed during the following years, hopefully resulting in a Global Pact.

In short, after more than 50 years of debate and consideration, the relationship between human rights and the environment is clear, but the UNGA has recognised that international governance still lacks a legal instrument which enunciates the right to a healthy environment, leaving the human rights system incomplete. The GPE represents a step forward in this respect.

Regional and National Expression of a Right to a Healthy Environment

As noted, the international environmental governance framework has developed through sectoral treaties on specific issues. This method has led to a situation in which there are different types and levels of environmental protection among countries. The draft GPE proposes a rights-based approach that would add legal certainty while preserving the system’s flexibility – allowing it to adjust to the evolution of the environmental challenges and of scientifically sound solutions. A rights-based approach to the environment⁴⁶ would require all public and private institutions to incorporate environmental rights considerations into plans, policies and processes, based on the rights and obligations set by international law.⁴⁷ The formal recognition of a right to a healthy environment would, therefore, strengthen the international protection of the environment, and would provide the necessary human rights language for the cohesive realisation of the SDGs.⁴⁸ At the regional and national levels, environmental law and policy have accomplished



Former French Foreign Minister, Laurent Fabius, and former UN Secretary General, Ban Ki-Moon, join French president, Emmanuel Macron, in announcing the Global Pact proposal

Courtesy: Le Club des Juristes

much, but they have still not achieved the levels of success seen in the processes that resulted in the protection of the first and second generation of human rights, the civil and political rights, and, for example, the economic, social and cultural rights, protected under the two legally binding covenants of 1966.⁴⁹

At the regional level, there are three treaties that explicitly enumerate a “right to a healthy environment”. They address the human right to the environment as follows:

- i) The African (Banjul) Charter on Human and People’s Rights: “All peoples shall have the right to a general satisfactory environment favorable to their development”;⁵⁰
- ii) the San Salvador Protocol, 1988: “1. Everyone shall have the right to live in a healthy environment and to have access to basic public services. 2. The States Parties shall promote the protection, preservation, and improvement of the environment”;⁵¹ and
- iii) the (UNECE) Convention on Access to Information, Public Participation in Decision-Making and Access to Justice in Environmental Matters: “Recalling principle 1 of the Stockholm Declaration on the Human Environment... Recognizing also that every person has the right to live in an environment adequate to his or her health and well-being, and the duty, both individually and in association with others, to protect and improve the environment for the benefit of present and future generations”.⁵²

Surprisingly, in Europe, neither the European Convention for the Protection of Human Rights and Fundamental Freedoms⁵³ nor the Charter of Fundamental Rights of the European Union⁵⁴ specifically identify a human right to a healthy and safe environment. As to the latter, Article 37 of the Charter of Fundamental Rights does state that “[a] high level of environmental protection and the improvement of the quality of the environment must be integrated into the policies of the Union and ensured in accordance with the principle of sustainable development”, but does not undertake any evaluation of an individual right to a healthy environment.

The European Social Charter contains a paragraph that refers to the interpretation of the scope of the provisions of the Charter, in the sense that “(m) easures should be introduced to prevent activities that are damaging to health, such as smoking, alcohol and drugs, and to develop a sense of individual responsibility, including such aspects as a healthy diet, sex education and the environment”.⁵⁵

At the national level, as of 2012, a total of 177 of the 193 UN Members recognise the right to environmental quality through constitutional provision, legislation, judicial precedent, or international agreement,⁵⁶ with more than 100 recognising the right explicitly in legislation or constitutions.⁵⁷ There is a clear trend towards the recognition of a right to a healthy environment in the national and regional courts. In the first such case,⁵⁸ the High Court of Ireland recognised “a personal constitutional right to an environment”.⁵⁹ In the second,

the Inter-American Court on Human Rights issued an Advisory Opinion recognising the right to a healthy environment as fundamental to human existence.⁶⁰ Both appear to consider the right to a healthy environment as an individual human right that needs to be protected and enforced at the national and the international levels.

Additional evidence of this trend may be found in the “Brasilia Declaration on Water Justice”, recently endorsed during the 8th World Water Forum. Issued by “the judges who administer water justice and adjudicate cases regarding the utilization, management and protection of all forms of freshwater resources; equitable access to water and sanitation services; the impact of human activities on water and the environment; and restoration of ecological services and functions”, this declaration reaffirmed the values and principles enshrined in all the previous environmental declarations, including, for the first time, those incorporated in the draft of the GPE.⁶¹

Mainstreaming Across the Sustainable Development Goals

The SDGs, described above, are a “universal call to action to end poverty, protect the planet and ensure that all people enjoy peace and prosperity”⁶² as part of the 2030 Sustainable Development Agenda. Experts have alleged, however, that their main failure is that they avoid any rights-oriented language.⁶³ The SDGs are, at any rate, a guide for governments in their policy development and, despite their flaws, they are of substantial importance to the achievement of sustainable development in general, and to the improvement of the connection between human rights and the environment, in particular.⁶⁴ They provide a solid foundation for the definition of the necessary policies for current world challenges, including the environmental ones.

Most States around the world recognise substantive and/or procedural rights related to the protection of the environment; rights that necessarily entail a subsequent duty of care.⁶⁵ Substantively, in the domestic sphere, these obligations stem from legislation and jurisprudence (the latter having produced more uneven results). States have a duty to adopt and implement legal frameworks to protect against environmental harm that may affect human rights, in particular, those of the most vulnerable. Internationally, they arise from the implicit recognition of the right to a healthy environment derived from the protection of other human rights.⁶⁶

Procedural obligations relate to access to environmental information, and public participation in environmental decision-making processes supporting the substantive obligations (*i.e.*, the recognition of the environmental human right). The levels of protection vary among States as these obligations (particularly the substantive ones) must be tempered with States’ acknowledged “right to development”.⁶⁷ Thus, even if one assumes the existence of an obligation of States to avoid environmental harms and protect human rights in a non-regressive fashion, there is still ample scope to strengthen the implementation of international environmental law. In this connection,

transboundary environmental damages have proven particularly contentious, whether because they are not contemplated in most international human rights agreements or due to the fact that the existing references are rather inconsistent and therefore create legal uncertainty.

The eradication of poverty and reversal of the increase in social, economic and environmental inequalities, are indispensable requirements to achieve sustainable development in its three dimensions (economic, social and environmental) – an on-going process that builds upon the unfinished business of the millennium development goals.⁶⁸

Conclusion

Following the adoption of the UN Declaration on Human Rights, 1948, the Human Rights Commission was asked to create a human rights body of law with legally binding force. In 1966, the UNGA adopted two international covenants on human rights in response to that mandate. At that point in history, there was not yet political interest in the legal aspects of environmental matters. Consequently, environmental rights were not included in these efforts. Today, the GPE offers a framework for that generation of rights, gathering all existing environmental principles in a single document that would serve as the cornerstone of the international environmental legal order. The GPE supplements the existing human rights legal system incorporating the environment, as one of the three pillars of sustainability – the only element that has been lacking in the human rights approach.

The GPE would complete the sustainability system by adding the environment to the economic and social spheres of the human-rights-protection legal order and by giving more consistency to the SDGs and, hence, to the framework that would guide the action of the States towards a fairer and more sustainable world.

Its critical contributions would be manifold. It would be set in the UN human rights global framework of universal rights and global obligations for the States. As such, it would complement the right to a healthy environment, enhancing that right in two ways: enunciating both an obligation that States create the necessary conditions for the effective realisation of an individual right to a healthy environment, and, conversely, a duty of the States to set an objective policy to protect the environment.

The SDGs provide a guideline to promote human rights obligations among States to improve the lives of the people in a sustainable way. Recognition of these responsibilities guarantees the effectiveness of the individual right to a healthy environment. Thus, the GPE would also complete the SDG framework, making it more robust and coherent in order to guide the public policies of States towards a fairer and more sustainable world.

Notes

1 Charter of the United Nations and Statute of the International Court of Justice (San Francisco, 1945). Online at <https://treaties.un.org/doc/publication/ctc/uncharter.pdf>.

2 Brundtland, G.H. 1987. *Report of the World Commission on Environment and Development: "Our Common Future"*, at 38. United Nations.

3 *Ibid.*, at 41.

4 UN General Assembly. "Transforming our world: The 2030 Agenda for Sustainable Development". UN Doc. A/RES/70/1 (21 October 2015). Online at http://www.un.org/ga/search/view_doc.asp?symbol=A/RES/70/1&Lang=E.

5 *Ibid.*

6 Global Pact for the Environment update: <https://wedocs.unep.org/bitstream/handle/20.500.11822/22190/Global%20Pact%20for%20the%20Environment%20-%20Concept%20note%20%2813%20November%29.pdf?sequence=3&isAllowed=y>.

7 Article 3, draft of the Global Pact for the Environment, as it was presented in Paris in June 2017.

8 Paulo, S. 2014. "International Cooperation and Development. A conceptual overview". Discussion Paper. Bonn: Deutsches Institut für Entwicklungspolitik.

9 *Supra*, note 4. See also UN Press release: 25 September 2015. "Historic New Sustainable Development Agenda Unanimously Adopted by 193 UN Members". Online at <http://www.un.org/sustainabledevelopment/blog/2015/09/historic-new-sustainable-development-agenda-unanimously-adopted-by-193-un-members/>.

10 Among the 192 nations that are UN Members, the right to a healthy environment was explicitly recognised in the constitutions of 90 of them. In at least 12 other countries, Supreme or Constitutional Courts have ruled in favour of an implicit constitutional right to environmental health. Boyd, D. 2011. "Constitutional Right to a Healthy Environment". *RECIEL* 20(2): 171–179. Online at <https://onlinelibrary.wiley.com/doi/full/10.1111/j.1467-9388.2011.00701.x>.

11 For a complete analysis of the evolution of the protection of the environment, see Caradonna, J. 2014. *Sustainability. A History*. Oxford University Press.

12 Turner, S.J. 2008. *A substantive environmental right: an examination of the legal obligations of decision-makers towards the environment*. Kluwer Law International Energy and Environmental Law and Policy Series. Alphen aan den Rijn: Kluwer Law.

13 From an idea floated by Amadeo Postiglione, to the IUCN draft, various attempts have sought to promote such a Pact (or something similar). *Ibid.*

14 Knox, J. 2018. "Report of the Special Rapporteur on the issue of human rights obligations relating to the enjoyment of a safe, clean, healthy and sustainable environment". UN Doc. A/HRC/37/59, at 2.

15 *Supra*, note 8, at 1.

16 *Ibid.*, at 2.

17 Brief summary and various UNEP sources on this topic are online at <http://web.unep.org/divisions/delc/human-rights-and-environment>.

18 *Supra*, note 14.

19 The International Covenant on Civil and Political Rights. 1966, New York. UNTS Registration No. I-14668; and International Covenant on Economic, Social and Cultural Rights. UNTS Registration No. I-14531. The Council of Europe's unofficial summaries of these two documents can be found online at http://www.eych.coe.int/compass/en/pdf/6_4.pdf.

20 United Nations. 1948. A Universal Declaration of Human Rights. UNGA Resolution 217(III). Indexed as [http://www.un.org/en/ga/search/view_doc.asp?symbol=A/RES/217\(III\)](http://www.un.org/en/ga/search/view_doc.asp?symbol=A/RES/217(III)). See <http://www.un.org/en/universal-declaration-human-rights/>.

21 Chancel, L. 2017. *Insoutenables Inégalités. Pour une justice sociale et environnementale*, at 175. Paris: Les petits matins.

22 Gwangndi, M.I., Muhammad, Y.A. and Tagi, S.M. 2016. "The Impact of Environmental Degradation on Human Health and its Relevance to the Right to Health Under International Law". *European Scientific Journal* 12(10).

23 Knox, J. 2012. "Report of the Independent Expert on the issue of human rights obligations relating to the enjoyment of a safe, clean, healthy and sustainable environment, John H. Knox". Human Rights Council. UN Doc. A/HRC/22/4. The Rapporteur's subsequent reports stress this same point. All are available at: United Nations Human Rights. Office of the High Commissioner. Special Rapporteur on human rights and the environment (former Independent Expert on human rights and the environment). Online at <http://www.ohchr.org/EN/Issues/Environment/SREnvironment/Pages/SREnvironmentIndex.aspx>.

24 Knox, J. and Pejan, R. 2018. "Introduction: The Human Right to a Healthy Environment", at 3. In: Knox, J. and Pejan, R. (Eds) *The Human Right to a Healthy Environment*. Cambridge University Press.

25 Declaration of the United Nations Conference on the Human Environment. 1972. Chapter 1 of Part 1. *Report of the United Nations Conference on the Human Environment*. UN Doc. A/Conf.48/14/Rev.1. Stockholm.

26 Rio Declaration on Environment and Development. 1992. Annex I to "Report of the United Nations Conference on Environment and Development. Rio de Janeiro, 3–14 June", UN Doc. A/CONF.151/26 (Vol. I). Online at <http://www.un.org/documents/ga/conf151/aconf15126-1annex1.htm>.

27 Boyd, D.R. 2018. "Catalyst for Change: Evaluating Forty Years of Experience in Implementing the Right to a Healthy Environment". In: Knox and Pejan (Eds), *supra*, note 24.

28 Rodríguez-Garavito, C. 2018. "A Human Right to a Healthy Environment? Moral, Legal, and Empirical Considerations". In: Knox and Pejan (Eds), *supra*, note 24.

29 See, for example, the following websites, as sources of examples of international sectoral agreements: UN Division for Ocean Affairs and Law of the

Sea: http://www.un.org/depts/los/convention_agreements/convention_overview_fish_stocks.htm; Convention on Biological Diversity: <https://www.cbd.int/convention/>; International Maritime Organization: <http://www.imo.org/en/About/Conventions/Pages/Home.aspx>; and UN Framework Convention on Climate Change: <http://unfccc.int/2860.php>.

30 *Supra*, note 12.

31 Resolution 1989/42. [According to the UNHCR website, <http://www.ohchr.org/EN/Issues/Environment/HREnvironment/Pages/HREnvironmentIndex.aspx>, UN OHCHR Resolution 1989/42 addresses the movement and dumping of toxic and dangerous products and wastes. As of the date of this publication, the document is unavailable on that website or, apparently, in any electronic format. Several libraries maintain hard copies of key environmental decisions of various UN Agencies, including the IUCN Environmental Law library. Ed.]

32 Resolutions 1994/65, 1995/14 and 1996/13. [According to the UNHCR website, *ibid.*, UN OHCHR Resolutions 1994/65, 1995/14 and 1996/13 are all entitled “Human rights and the environment”. They too are no longer available as such on the Commission’s website for those seeking to determine their precise content. Ed.]

33 Commission on Human Rights Resolution 2002/75 UN Doc. E/CN.4/RES/2002/75, online at http://ap.ohchr.org/documents/alldocs.aspx?doc_id=4940; Commission on Human Rights Resolution 2003/71 UN Doc. E/CN.4/RES-2003-71, online at http://ap.ohchr.org/documents/alldocs.aspx?doc_id=5020; Resolution 2005/60, UN Doc. E/CN.4/RES/2005/60, online at http://ap.ohchr.org/documents/alldocs.aspx?doc_id=11140. Each of these resolutions is entitled “Human rights and the environment as part of sustainable development”. See <http://www.ohchr.org/EN/Issues/Environment/HREnvironment/Pages/HREnvironmentIndex.aspx>.

34 UN General Assembly Resolution 48/141. UN Doc. A/RES/48/141, online at <http://www.un.org/documents/ga/res/48/a48r141.htm>. The re-designation/re-authorisation of the Human Rights Council is addressed in UNGA Resolution 60/251. UN Doc. A/RES/60/251, online at https://www2.ohchr.org/english/bodies/hrcouncil/docs/A.RES.60.251_En.pdf.

35 Human Rights Council. 2011. “Analytical study on the relationship between human rights and the environment: Report of the United Nations High Commissioner for Human Rights”. UN Doc. A/HRC/19/34, at 15–17. Online at <http://srenvironment.org/wp-content/uploads/2013/05/Analytical-study-OHCHR-PDF.pdf>.

36 UN HRC Resolution 19/10. UN Doc. A/HRC/RES/19/10. Online at <https://documents-dds-ny.un.org/doc/RESOLUTION/GEN/G12/131/59/PDF/G1213159.pdf?OpenElement>.

37 UN HRC Resolution 28/11. UN Doc. A/HRC/RES/28/11. Online at <https://documents-dds-ny.un.org/doc/UNDOC/GEN/G15/071/78/PDF/G1507178.pdf?OpenElement>.

38 Human Rights Council (Session Documents). 2013. “Report of the Independent Expert on the issue of human rights obligations relating to the enjoyment of a safe, clean, healthy and sustainable environment, John H. Knox”. UN Doc. A/HRC/22/43. Here and elsewhere, UN documents are accessible online by entering document symbol in search box at <http://www.un.org/en/ga/documents/symbol.shtml>.

39 Human Rights Council (Session Documents). 2013. “Report of the Independent Expert on the issue of human rights obligations relating to the enjoyment of a safe, clean, healthy and sustainable environment, John H. Knox – Mapping report”. UN Doc. A/HRC/25/53.

40 Human Rights Council (Session Documents). 2015. “Report of the Independent Expert on the issue of human rights obligations relating to the enjoyment of a safe, clean, healthy and sustainable environment, John H. Knox – Compilation of good practices”. UN Doc. A/HRC/28/61.

41 Human Rights Council (Session Documents). 2016. UN Doc. A/HRC/31/52; Human Rights Council (Session Documents). 2017. UN Doc. A/HRC/34/49; and Human Rights Council (Session Documents). 2018. UN Doc. A/HRC/37/58. All identically entitled “Report of the Special Rapporteur on the issue of human rights obligations relating to the enjoyment of a safe, clean, healthy and sustainable environment”.

42 Human Rights Council (Session Documents). 2016. UN Doc. A/HRC/31/53. This document bears the same title as the 2016 report cited in note 41, *ibid.*

43 Human Rights Council (Session Documents). 2018. UN Doc. A/HRC/37/59. This document bears the same title as the 2018 report cited in note 41, *supra*, which focused on the impact on children’s rights.

44 Environmental News Service. 30 July 2017. “Global Treaty for the Environment Taking Shape”. Online at <http://ens-newswire.com/2017/07/30/global-treaty-for-the-environment-taking-shape> (quoting Antonio Benjamin).

45 UNGA Resolution 72/277. 10 May 2018. “Towards a Global Pact for the Environment”. UN Doc. A/RES/72/277. Online at http://www.un.org/en/ga/search/view_doc.asp?symbol=A/RES/72/277.

46 Springer, J. 2016. “IUCN’s Rights-Based Approach: A Systematization of the Union’s Policy Instruments, Standards and Guidelines”. Online at https://www.iucn.org/sites/dev/files/content/documents/iucn_rba_systematization_compiled.pdf.

47 UN HRBA (Human Rights Based Approach) Portal. “What is a human rights-based approach?” Online at <http://hrbportal.org/faq/what-is-a-human-rights-based-approach>.

48 One of the main criticisms levelled at the SDGs is their failure to use the standard human rights terminology that would have enhanced their accountability. See Winkler, I.T. and Williams, C. 2017. “The Sustainable Development Goals and Human Rights: A Critical Early Review”. *The International Journal of Human Rights* 21(8): 1023–1028. Online at <https://www.tandfonline.com/doi/abs/10.1080/13642987.2017.1348695>.

49 *Supra*, note 19.

50 Article 24. African (Banjul) Charter on Human and People’s Rights. 1981, Nairobi. Available online at http://www.achpr.org/files/instruments/achpr/banjul_charter.pdf.

51 Article 11, Additional Protocol to the American Convention on Human Rights in the Area of Economic, Social and Cultural Rights (“Protocol of San Salvador”). 1988, San Salvador (not in force). Online at [https://www.oas.org/dil/1988%20Additional%20Protocol%20to%20the%20American%20Convention%20on%20Human%20Rights%20in%20the%20Area%20of%20Economic%20Social%20and%20Cultural%20Rights%20\(Protocol%20of%20San%20Salvador\).pdf](https://www.oas.org/dil/1988%20Additional%20Protocol%20to%20the%20American%20Convention%20on%20Human%20Rights%20in%20the%20Area%20of%20Economic%20Social%20and%20Cultural%20Rights%20(Protocol%20of%20San%20Salvador).pdf).

52 First and seventh preambular paragraphs, Convention on Access to Information, Public Participation in Decision-Making, and Access to Justice in Environmental Matters. 2001, Aarhus. Online at <https://www.unece.org/fileadmin/DAM/env/pp/documents/cep43e.pdf>.

53 European Convention on Human Rights. Rome, 1950 (as amended by Protocols 11 and 14) and supplemented by Protocols 1 (Paris, 1952), 4 (Strasbourg, 1963), 6 (Strasbourg, 1983), 7 (Strasbourg, 1984), 12 (Rome, 2000), 13 (Vilnius, 2002) and 16 (Strasbourg, 2013). The convention as amended and all of the supplementary protocols are online at <http://www.echr.coe.int/pages/home.aspx?p=basictexts>.

54 “Charter of Fundamental Rights of the European Union”. *Official Journal of the European Communities*, 2000/C 364/01. Online at http://www.europarl.europa.eu/charter/pdf/text_en.pdf.

55 The European Social Charter: Collected texts (7th edition), updated 1 January 2015, at 240. Online at <https://rm.coe.int/168048b059>. In addition to the citation in the text, at Article 11 (“Right to protection of health”), it notes that:

With a view to ensuring the effective exercise of the right to protection of health, the Contracting Parties undertake, either directly or in co-operation with public or private organisations, to take appropriate measures designed inter alia: 1. to remove as far as possible the causes of ill-health; 2. to provide advisory and educational facilities for the promotion of health and the encouragement of individual responsibility in matters of health; 3. to prevent as far as possible epidemic, endemic and other diseases.

It cites the “Declarations of the United Nations Stockholm (1972) and Rio de Janeiro (1992) environment conferences” as well as the UNFCCC and Kyoto Protocol among the “Selected international instruments in the same field” as this provision (at 268).

56 Boyd, D. 2012. “The Constitutional Right to a Healthy Environment”. *Environment: Science and Policy for Sustainable Development* 54(4): 3–15. Online at <http://www.environmentmagazine.org/Archives/Back%20Issues/2012/JulyAugust%202012/constitutional-rights-full.html>.

57 *Supra*, note 10.

58 Merriman et al. v. Fingal County Council et al.; *Friends of the Irish Environment Clg v. Fingal County Council et al.* [2017] IEHC 695. Online at http://blogs2.law.columbia.edu/climate-change-litigation/wp-content/uploads/sites/16/non-us-case-documents/2017/20171121_2017-No.344-JR_judgment.pdf.

59 See Adler, D. 2017. “Irish High Court Recognizes a Right to an Environment, But Finds that Environmental Group Lacks Standing to Make Climate Change Claims in Airport Runway Case”. *Columbia Law School, Climate Law Blog, Sabin Center for Climate Change Law*. Online at <http://blogs.law.columbia.edu/climatechange/2017/12/12/irish-high-court-recognizes-a-right-to-an-environment-but-finds-that-environmental-group-lacks-standing-to-make-climate-change-claims-in-airport-runway-case/>.

60 The Environment and Human Rights (State Obligations in Relation to the Environment in the Context of the Protection and Guarantee of the Rights to Life and to Personal Integrity – Interpretation and Scope of Articles 4(1) and 5(1) of the American Convention on Human Rights), Advisory Opinion OC-23/18, Inter-Am. Ct. H.R., (ser. A) No. 23 (15 November 2017), available at http://www.corteidh.or.cr/docs/opiniones/seriea_23_esp.pdf [in Spanish].

61 19th preambular provision. “Brasilia Declaration of Judges on Water Justice [10 Principle Declaration]”. 2018. IUCN World Commission on Environmental Law. As presented to/endorsed by the 8th World Water Forum. Online at https://www.iucn.org/sites/dev/files/content/documents/brasilia_declaration_of_judges_on_water_justice_21_march_2018_final_as_approved_0.pdf.

62 UNDP website. “Sustainable Development Goals”. Online at <http://www.undp.org/content/undp/en/home/sustainable-development-goals.html>.

63 Knox, J. 2015. “Human Rights, Environmental Protection, and the Sustainable Development Goals.” *Washington International Law Journal* 24(3): 517–536.

64 *Ibid.*

65 See, generally, Boyd, D.R. 2012. *The Environmental Rights Revolution. A Global Study of Constitutions, Human Rights, and the Environment*. Law and Society Series. Vancouver BC: UBC Press. At pp. 45–77.

66 *Supra*, note 24.

67 UNGA. 1986. Resolution 41/128, “Declaration on the Right to Development”. UN Doc. A/RES/41/128. Online at <http://www.un.org/documents/ga/res/41/a41r128.htm>.

68 In September 2000, the UN Millennium Declaration was adopted by world leaders at United Nations Headquarters in New York. The Millennium Goals therein agreed to aim at reducing extreme poverty and set out a series of

time-bound targets in poor countries. They were replaced, in 2015, by the Sustainable Development Goals, geared towards all countries in the world. See <http://www.un.org/millenniumgoals/bkgd.shtml>.



UNCLOS

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Negotiations for Sustainable Oceans: Significant Challenges Ahead

by Efstathia Lainaⁱ

The conservation and sustainable use of marine biodiversity in areas beyond national jurisdiction is increasingly attracting international attention. Scientific information, albeit insufficient, reveals the richness and vulnerability of these resources; while at the same time concerns grow about the increasing anthropogenic pressures posed by activities such as fishing, deep-sea mining, marine pollution, and marine bioprospecting.

If left unaddressed, such activities will lead to a destructive cycle in which oceans will no longer be able to provide many services on which life on this planet depends. Oceans and seas moderate global climate conditions; maintain the earth's ecosystems; and support the livelihoods of more than three billion people. Sustainable oceans and seas can contribute to poverty eradication, economic growth, food security and creation of livelihoods, while helping to build resilience to the impacts of climate change. Thus, it is critical to develop a binding treaty aiming at the conservation and sustainable use of marine biological resources, as soon as possible.

Background of the Negotiations

These negotiations found their origins as far back as 2004, when UN General Assembly (UNGA) Resolution 59/24 established an Ad Hoc Open-ended Informal Working Group to study issues relating to the conservation and sustainable use of biodiversity in areas beyond national jurisdiction. In 2011, the Working Group adopted a set of recommendations to initiate the process of developing a legal framework on this issue. It identified gaps and ways forward, and exchanged views on the implementation of existing instruments and the possible development of a multilateral agreement under the UN Convention on the Law of the Sea (UNCLOS). Among its recommendations, the Group identified a “package” of four sets of issues that it felt needed to be addressed collectively:

- marine genetic resources (MGRs), including access and benefit sharing;
- area-based management tools, including marine protected areas (MPAs);

- environmental impact assessments (EIAs) and other such measures; and
- capacity building and transfer of marine technology.

In subsequent meetings, these categories are generally collectively referred to as “the package”.

In 2015, UNGA Resolution 69/292 established a Preparatory Committee (PrepCom), mandated to provide substantive recommendations on the elements of a draft text of an International Legally Binding Instrument (ILBI) under UNCLOS that would take the Working Group's recommendations into account. The Committee considered the scope of an ILBI, its relationship with other instruments, guiding approaches and principles, and the elements of the “package”. In spite of diverging views that had led the wide majority of countries to argue that all efforts to reach consensus had been exhausted, the PrepCom eventually adopted a non-exclusive list of potential elements on which there was “a convergence of views” that they be a part of an ILBI draft text; and a list of other potential elements on which there was divergence of views. It noted that neither list reflected a consensus in favour of inclusion, and recommended that an Intergovernmental Conference (IGC) be convened as soon as possible to commence negotiations.

On 24 December 2017, the UNGA adopted Resolution 72/249 calling on the Secretariat to convene an IGC to elaborate the text of an ILBI, with a view to developing the instrument as soon as possible. That resolution authorised an organisational meeting, followed by four sessions of the IGC, all to be held in New York City. This report briefly summarises the discussions and outcomes of the organisational meeting, which was held from 16–18 April 2018, and of the IGC-1, held 4–17 September 2018.

IGC Organisational Meeting

At last April's IGC Organisational session,¹ delegates elected Rena Lee (Singapore) to serve as president of IGC; established an IGC credentials committee and a 16-person, regionally balanced IGC bureau; and formally agreed to apply the UNGA's rules of procedure to the IGC's operations. Although favouring a “flexible

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